

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
CARLOS MARCHE,**SUMMONS**

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of IncidentNYPD POLICE OFFICER JESSICA SCHRELL, Shield
No. 26482, and NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS 1-10,Plaintiff designates Kings
County as the place of trial.Defendants.
----- X**To the above named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
December 23, 2021By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO:

NYPD POLICE OFFICER JESSICA SCHRELL, SHIELD NO. 26482, 90th Precinct.
211 Union Avenue, Brooklyn, NY 11211

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

CARLOS MARCHE,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

NYPD POLICE OFFICER JESSICA SCHRELL, Shield
No. 26482, and NYPD POLICE OFFICERS
JOHN/JANE DOES NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff CARLOS MARCHE, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 15, 2021, at approximately 4:00pm, Plaintiff CARLOS MARCHE, while lawfully in the vicinity of 228 South 3rd Street in Kings County, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendants NYPD Officers. In addition, Plaintiff was subjected to unnecessary force, assault, and battery, and has thus suffered physical, emotional, and psychological distress as result of the above-mentioned violations. Plaintiff was then unlawfully imprisoned at the 90th Precinct and Kings County Central Bookings for approximately 24 hours until plaintiff was arraigned in Criminal Court, charged with crimes he did not commit, and released on his own recognizance. Plaintiff was denied the right to due process and a fair trial until the Criminal Possession and Obstructing Governmental Administration charges against Plaintiff were dismissed and sealed on or about May 4, 2021. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CARLOS MARCHE is a resident of the State of New York.
3. NYPD POLICE OFFICER JESSICA SCHRELL, SHIELD NO. 26482, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER JESSICA SCHRELL, SHIELD NO. 26482, was at all times relevant herein, assigned to the 90th Precinct.
5. NYPD POLICE OFFICER JESSICA SCHRELL, SHIELD NO. 26482, is being sued in her individual and official capacity.
6. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN/JANE DOES NUMBERS 1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

12. On January 15, 2021, at approximately 4:00 p.m., Plaintiff was lawfully present in the vicinity of 228 South 3rd Street in Brooklyn, New York, when the defendant police officers unlawfully stopped, questioned, assaulted, battered, frisked, and falsely arrested Plaintiff without probable cause or legal justification.

13. Plaintiff was walking down South 3rd Street when defendant officers approached Plaintiff and tackled him for no legal reason.

14. The defendant officers tackled the plaintiff and began punching him repeatedly and dragging him backward down the street.

15. It was at this point the Defendant Officers began to arrest the plaintiff, restraining him with metal handcuffs.

16. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

17. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

18. At no point did Plaintiff resist arrest.

19. Plaintiff was then searched by Defendant Officers, and no contraband was found.

20. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody or control.

21. Injured and in pain, Plaintiff was then transported by defendant officers to the 90th Precinct police station against his will, where he was unlawfully photographed, fingerprinted, and detained in a holding cell.

22. A short time thereafter, Plaintiff was transported from the 90th Precinct to Kings County Central Bookings.

23. The defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

24. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that the plaintiff was engaged in Obstructing Governmental Administration and other related charges.

25. On January 16, 2021, after approximately 24 hours in unlawful custody, Plaintiff was arraigned in Kings County Criminal Court, charged with crimes that the defendant officers had no basis to allege that he committed, and released on his own recognizance.

26. On May 4, 2021, the criminal charges which were made against the plaintiff were dismissed and sealed in their entirety.

27. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.

28. The unlawful search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

29. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 28 with the same force and effect as if more fully set forth at length herein.

30. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

31. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

32. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 31 with the same force and effect as if more fully set forth at length herein.

33. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff

and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

34. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

35. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

36. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

37. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

38. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 37 with the same force and effect as if more fully set forth at length herein

39. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

40. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

41. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

42. In withholding/creating false evidence against Plaintiff CARLOS MARCHE, and in providing/withholding information with respect thereto, defendants violated the plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

43. As a result of the foregoing, Plaintiff CARLOS MARCHE sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights **Excessive Force**

47. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The use of excessive force by defendants by, amongst other things, by punching and tackling him, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

50. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants,

individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

52. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

53. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

55. Defendants failed to intervene to prevent the unlawful conduct described herein.

56. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was physically injured, humiliated, and subject to other physical constraints.

57. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

61. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff CARLOS MARCHE demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 23., 2021

By: C. Cass Luskin
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 221-1000

TO:

NYPD POLICE OFFICER JESSICA SCHRELL, SHIELD NO. 26482, 90th Precinct.
211 Union Avenue, Brooklyn, NY 11211

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

December 23, 2021

C. Cass Luskin
C. CASS LUSKIN